

IN THE MAGISTRATE COURT OF FULTON COUNTY
STATE OF GEORGIA

Camden Summit Partnership, LP A/A/F Camden Phipps,
Plaintiff,

Civil Action No.
25ED362028

v.

Lauren Denise Thomas, All Other Occupants,
Defendant.

**DEFENDANT'S MOTION TO DISMISS DISPOSSESSORY PROCEEDING FOR
IMPROPER SERVICE**

COMES NOW Defendant, Lauren Thomas, appearing pro se, and respectfully moves this Court to dismiss the above-captioned dispossessory proceeding, or alternatively quash the purported service, because Defendant was not properly served as required by Georgia law.

In support of this Motion, Defendant states as follows:

1. Plaintiff filed a dispossessory proceeding against Defendant concerning the premises located at: 123 Peachtree Street, Apt 4B, Atlanta, GA 30303
2. Defendant was not properly served with the dispossessory affidavit and/or dispossessory warrant.
3. Specifically, the circumstances surrounding the attempted service were as follows:
On September 12, 2026, I found papers posted on my apartment door. No papers were handed to me.
4. Defendant did not receive service in a manner authorized by Georgia law.
5. Defendant did not receive actual notice through a legally sufficient method of service that would provide the Court with personal jurisdiction over Defendant in this dispossessory proceeding.
6. Defendant therefore objects to the sufficiency of service and requests that the Court determine that service was defective.
7. Because service was not properly perfected, Defendant respectfully submits that the dispossessory proceeding should not proceed against Defendant based upon the defective service.
8. Defendant raises improper service as a defense and expressly preserves the right to contest the dispossessory proceeding, possession of the premises, any alleged amount owed, and all other defenses and claims available under Georgia law.

WHEREFORE

Defendant respectfully requests that this Court:

- a. Dismiss the dispossessory proceeding for improper service;
- b. Alternatively, quash the purported service and require Plaintiff to effectuate lawful service before this matter proceeds;
- c. Deny any request for a writ of possession based upon defective service;
- d. Grant Defendant any additional relief the Court determines to be appropriate; and
- e. Grant such other and further relief as the Court deems just and proper.

Respectfully submitted this 22 day of September, 2026.

Lauren D. Thomas
Defendant, Pro Se

Address:
123 Peachtree Street, Apt 4B, Atlanta, GA 30303
Telephone: 404-555-0123
Email: lauren@example.com

CERTIFICATE OF SERVICE

I hereby certify that I have served a copy of the foregoing Defendant's Motion to Dismiss Dispossessory Proceeding for Improper Service upon the Plaintiff or Plaintiff's attorney by:

- ☐ Hand delivery
- ☒ U.S. Mail
- ☐ Other: _____

to:

Morgan Smith
456 Court Street, Atlanta, GA 30303

This 23 day of September, 2026.

Lauren Denise Thomas
Defendant, Pro Se